

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

2024CUOE033533: JOSEPH HERNANDEZ vs PAVEWEST, INC., et al.
09/09/2026 in Department 44
Motion FOR FINAL APPROVAL OF CLASS ACTION AND PAGA SETTLEMENT

Department Rules. Parties and counsel shall follow the Department 44 rules and Zoom protocols, available at <https://www2.ventura.courts.ca.gov/Courtroom/C44>.

Remote Appearances. The Court allows Zoom appearances as a courtesy to parties and counsel. The Court does not accommodate Court Call appearances. **You MUST register by 3:00 p.m. the court day before your hearing or you will be DENIED entry to the hearing:**

ZOOM Registration Link:

<https://ventura-courts-ca.zoom.us/meeting/register/iqN7uhQSQMuoQs-9TQXgEQ>

No advance notice is required to appear in person.

Tentative Rulings. Oral argument should address the tentative decision. To submit on the tentative decision, email courtroom44@ventura.courts.ca.gov before 8:00 a.m. on the hearing date, copying all other parties. Use the subject line “SUBMISSION ON TENTATIVE”, [Case Number], [Case Title] and [Party]. If not all parties submit, the hearing will proceed, and the tentative ruling may change.

The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motion: Plaintiff’s Motion for Final Approval of Class Action and PAGA Settlement

Tentative Ruling:

The Court **CONDITIONALLY APPROVES** the Motion subject to the submission of the following information to be provided to the Court together with a proposed order that conforms to this ruling. Within 10 days of this ruling, Plaintiffs shall:

- (1) Provide proof to the Court that both the Motion and Settlement were provided to the LWDA; the papers supporting the request for approval only establish that the settlement agreement was provided to the LWDA.
- (2) Lodge a proposed final-approval order and a proposed judgment consistent with California Rules of Court, rule 3.769(h), including retention of jurisdiction and a final compliance hearing, which shall be set for **February 24, 2027 at 1:30 p.m.**
- (3) Provide the invoices and consultant detail required by the Preliminary Approval Order to substantiate costs sought in excess of \$1,000 or the costs will be reduced accordingly; and

(4) File a supplemental declaration/amendment to the settlement agreement reconciling the cy pres provisions and stating whether Class Counsel have a fee-sharing agreement and, if so, whether the clients gave written consent.

(5) The Court sets a non-appearance case review re: Submission of Conditional Approval materials on **September 29, 2026, at 8:40 a.m.**

1. Approval of Key Financial Terms of Settlement

Description	Preliminarily Approved	Approved
Gross Settlement Amount	\$800,000.00	\$800,000.00
Less: Attorney Fees (not to exceed)	\$200,000.00 (25%)	\$266,666.67 (33 1/3%)
Less: Costs (not to exceed)	\$30,000.00	\$19,065.26 Only if substantiating documentation is received.
Less: Administrative Costs (not to exceed)	\$10,000.00	\$10,000.00
Less: PAGA Penalties	\$50,000.00	\$50,000.00
Less: Service Award	\$14,000.00	\$14,000.00
Net Settlement Before PAGA add-back	\$496,000.00	\$440,268.07
Plus PAGA Penalty to Aggrieved Employees (65% to LWDA / 35% to Aggrieved Employees) ¹	\$17,500.00	\$17,500.00
Net Settlement After PAGA add-back	\$513,500.00	\$457,768.07

Number of Class Members: 301 total Class Members; 300 Participating Class Members; 201 Aggrieved Employees. (Argueta Decl., ¶¶ 6, 14.)

2. Timely Service. The Motion was filed on June 23, 2026 and, given the current September 9, 2026 hearing date, there is no timing problem as to service on the parties. The record does not, however, establish service or submission of the final-approval Motion to the LWDA. Alami states that the LWDA was notified of the Settlement and did not object (Alami Decl., ¶ 38), but Exhibit 4 proves only that a “Proposed Settlement” was successfully submitted on November 20, 2025. The June 23 proof of service lists counsel of record but not the LWDA. Labor Code section 2699, subdivision (s)(2), requires the proposed settlement to be submitted to the agency at the same time it is submitted to the Court. Plaintiff’s counsel shall substantiate that both the motion and settlement agreement were provided to the LWDA.

3. Class Notice, Opt Outs, & Objections. The settlement class is defined as all non-exempt employees who worked for any of Defendants in California during the Class Period, November

¹ Effective for PAGA Notices filed before June 19, 2024, penalties recovered are allocated 75% (LWDA) / 25% (Aggrieved Employees). For PAGA Notices filed on or after June 19, 2024, penalties recovered are allocated 65% (LWDA) / 35% (Aggrieved Employees). (Labor Code § 2699(m).)

12, 2020 through February 16, 2026. (Settlement, §§ 1.5, 1.12; Argueta Decl., ¶ 5 & Ex. A.) The PAGA Period is November 12, 2023 through February 16, 2026. (Argueta Decl., ¶ 5 & Ex. A.)

Defendants provided data for 301 Class Members, 201 of whom are Aggrieved Employees. (Argueta Decl., ¶ 6.) CPT updated 18 addresses through the National Change of Address database and mailed notice to all 301 Class Members on April 13, 2026. (*Id.*, ¶¶ 7-8.) Eleven notices were returned; eight were remailed after skip tracing or use of forwarding addresses, leaving three undelivered. (*Id.*, ¶ 10.) CPT received no workweek/pay-period disputes, no objections, and one timely request for exclusion. (*Id.*, ¶¶ 11-13.) There are therefore 300 Participating Class Members, a 99.67% participation rate. (*Id.*, ¶ 14.) The escalator clause was not triggered. (*Id.*, ¶ 20.) The average Individual Class Payment is approximately \$1,467.56, with a range of approximately \$26.02 to \$6,245.31; the average Individual PAGA Payment is approximately \$87.07, with a range of approximately \$1.69 to \$195.47. (*Id.*, ¶¶ 16-17.) The notice disclosed the separate class and PAGA payments and correctly stated that an Aggrieved Employee could not opt out of the PAGA settlement. (*Id.*, ¶ 5 & Ex. A.)

4. Fairness of Settlement. At preliminary approval, the Court conducted a detailed *Dunk/Kullar* analysis and found the Settlement fair, adequate, and reasonable, and found certification appropriate for settlement purposes. (*Dunk v. Ford Motor Co.* (1996) 48 Cal.App.4th 1794, 1800-1802; *Kullar v. Foot Locker Retail, Inc.* (2008) 168 Cal.App.4th 116, 128-130.) The FAC alleges class and representative claims based on unpaid wages, meal and rest-period violations, inaccurate wage statements, waiting-time penalties, recovery periods, unreimbursed expenses, interest on deposits, vacation pay, unfair competition, and PAGA penalties. (FAC, ¶¶ 1-4, 20-33.) Class Counsel investigated payroll and timekeeping records for a class sample, employment policies, personnel files, and other records; prepared a damages analysis; and participated in a full-day mediation on April 11, 2025 before reaching settlement. (Alami Decl., ¶¶ 15-19.) Counsel also identifies risks concerning the legality of Defendants' policies, class certification, penalty defenses, trial expense, and appeal. (*Id.*, ¶¶ 10-14.) The final notice results (no objections, one exclusion, and a 99.67% participation rate) further support final approval. Subject to substantiating the LWDA-service issue, the Court independently confirms its prior fairness findings.

The PAGA allocation also remains substantively reasonable. The Court previously required the PAGA allocation to be increased from \$10,000 to \$50,000 and preliminarily found that amount sufficient to advance PAGA's enforcement and deterrence objectives. The \$50,000 allocation is 6.25% of the Gross Settlement Amount, with \$32,500 (65%) payable to the LWDA and \$17,500 (35%) distributed to Aggrieved Employees because the PAGA notices were filed after June 19, 2024. (Settlement Addendum, ¶¶ 1.1-1.3; Lab. Code, § 2699, subd. (m).) PAGA settlements are subject to judicial review to ensure the negotiated resolution is fair to those affected. (*Williams v. Superior Court* (2017) 3 Cal.5th 531, 549; *Turrieta v. Lyft, Inc.* (2024) 16 Cal.5th 664, 693.)

5. Attorney Fee Award. At preliminary approval, the Court approved fees of 25% of the \$800,000 common fund (\$200,000) and expressly reserved whether to approve fees up to one-third at final approval upon submission of evidence of counsel's hourly rates and hours worked. (Prelim. Approval Order, ¶ 8.) The Court previously appointed David Alami and Daniel

J. Hyun of Torus LLP and David D. Bibiyan and Vedang J. Patel of Bibiyan Law Group, P.C. as Class Counsel. (*Id.*, ¶ 5.)

The Court has an independent duty to determine a reasonable fee and may use a percentage-of-the-fund method with a lodestar cross-check. (*Consumer Privacy Cases* (2009) 175 Cal.App.4th 545, 555; *Laffitte v. Robert Half Internat. Inc.* (2016) 1 Cal.5th 480, 494-496, 503-505.)

Class Counsel request \$266,666.67, or one-third of the Gross Settlement Amount. (Alami Decl., ¶ 35.) Although the Court's preliminary ruling rejected the proposition that one-third is itself a California benchmark, the final papers now provide the case-specific lodestar evidence that was missing at preliminary approval.

Torus reports 139.5 hours by Alami at \$850 per hour and 32.9 hours by Hyun at \$900 per hour, for a \$148,185 lodestar. (Alami Decl., ¶¶ 30-31 & Ex. 5.) Bibiyan Law Group reports approximately 186 hours and a \$121,813 lodestar. (Bibiyan Decl., ¶ 16.) The combined stated lodestar is \$269,998 for 358.4 hours. The requested \$266,666.67 fee is approximately 98.77% of that lodestar, i.e., a slight negative multiplier rather than an enhancement. This cross-check materially supports the requested percentage.

The result is a non-reversionary \$800,000 common fund; the class notice disclosed that counsel would seek up to one-third; and no Class Member objected. (Argueta Decl., ¶¶ 5, 12 & Ex. A.)

The requested fee is essentially at parity with, and slightly below, the stated lodestar. That is a stronger case-specific justification than the generalized one-third comparison presented at preliminary approval. (*Laffitte, supra*, 1 Cal.5th at pp. 496-497, 504.)

No positive multiplier is requested. The checklist calls for disclosure of any fee-sharing agreement and written client approval, and for verification of paralegal qualifications if paralegal time is included. These points should be clarified in the supplemental filing, but they do not presently suggest that the requested amount is excessive.

The Court approves an attorney-fee award of \$266,666.67.

6. Service Award. Plaintiffs seek the same service awards preliminarily approved by the Court: \$9,000 to Hernandez and \$5,000 to Pineda. Hernandez estimates that he spent at least 45 hours on the case, including conferences with counsel, review of documents, explanation of Defendants' practices, and review of the Settlement. (Hernandez Decl., ¶¶ 5-9.) He also describes the delay, publicity, potential cost exposure, and employment concerns associated with serving as a named plaintiff. (*Id.*, ¶¶ 10-16.) Pineda estimates that he spent at least 24 hours providing information and documents, reviewing time and payroll records, remaining available for mediation, reviewing the Settlement, and communicating with counsel. (Pineda Decl., ¶¶ 9-18.) The requested awards equate to approximately \$200 per reported hour for Hernandez and \$208 per reported hour for Pineda. Given the individualized evidence, the Court's prior reduction of the awards to these amounts, and the absence of objections, the awards are reasonable.

(*Cellphone Termination Fee Cases* (2010) 186 Cal.App.4th 1380, 1393-1395; *Golba v. Dick's Sporting Goods, Inc.* (2015) 238 Cal.App.4th 1251, 1272; *Clark v. American Residential Services LLC* (2009) 175 Cal.App.4th 785, 805.)

7. Attorney Costs. The Court preliminarily approved litigation costs not to exceed \$30,000, expressly contingent on an itemized list and invoices for larger costs (those exceeding \$1,000 individually or in the aggregate by type) and a detailed consultant invoice identifying the person performing the work, hourly rates, dates, duration, and general description of work. (Prelim. Approval Order, ¶ 8.) Class Counsel now request \$19,065.26. (Alami Decl., ¶ 35; Bibiyan Decl., ¶ 17.)

The itemized exhibits reconcile to the requested total: Torus's Exhibit 6 totals \$4,828.27 and Bibiyan Law Group's Exhibit 1 totals \$14,236.99. (Alami Decl., Ex. 6; Bibiyan Decl., ¶ 17 & Ex. 1.) Alami's declaration separately states that Torus incurred \$4,829.27, creating a \$1 discrepancy. (Alami Decl., ¶ 30.) The record contains no invoices for the larger charges, including the \$8,415 consultant charge, the mediation fees, and filing-fee categories. The Court therefore will reduce the conditionally approved costs by any unsubstantiated costs unless proof is received.

8. Claims Administration. The Court previously appointed CPT Group as Settlement Administrator. Argueta confirms CPT's experience and its administration responsibilities. (Argueta Decl., ¶¶ 1-4.) CPT mailed notice to all 301 Class Members, performed address updating and skip tracing, tracked objections, exclusions and disputes, and calculated settlement payments. (*Id.*, ¶¶ 5-18.)

The Court preliminarily approved administration costs not to exceed \$10,000. Argueta states that CPT's incurred and anticipated completion costs are \$10,000, including issuance of checks, tax reporting, and final distribution declarations. (Argueta Decl., ¶ 19.) The Court approves \$10,000 in administration costs.

9. Cy Pres. The Court's January 29, 2026 minute order rejected the State Controller as the recipient of unclaimed class funds and required a local Ventura County organization; the Preliminary Approval Order then designated Ventura County Legal Aid (VCLA). (Prelim. Approval Order, ¶ 12.) The mailed notice likewise states in its principal settlement terms that uncashed Individual Class Payments will be sent to VCLA. (Argueta Decl., ¶ 5 & Ex. A, § 3(v).)

The record nevertheless contains conflicting remnants of the earlier State Controller provision: Settlement section 4.4.3 still directs uncashed Individual Class Payments to the State Controller, and Alami's final declaration states that the State Controller distribution is fair. (Alami Decl., ¶¶ 47-48.) Hernandez, by contrast, identifies VCLA as the cy pres recipient. (Hernandez Decl., ¶ 17.) The proposed final order and judgment must reconcile these provisions and conform the class-residue distribution to the Court's prior ruling. Counsel must also state expressly how uncashed Individual PAGA Payments will be handled; the Settlement separately directs those funds to the LWDA. (Settlement, § 4.4.3.)

For the reasons above, the Court CONDITIONALLY APPROVES the Motion subject to correction of the Settlement Agreement at section 4.4.3, proof to the Court that Plaintiff's sent both the settlement agreement and motion to the LWDA, and cost-documentation. Subject to these cures and any LWDA response, the Court is otherwise inclined to grant final approval on the financial terms set forth above, including \$266,666.67 in attorney fees, \$14,000 in total service awards, \$10,000 in administration costs, and the \$50,000 PAGA allocation; the \$19,065.26 cost request remains subject to the required invoices.

The proposed final-approval order should include a compliance hearing and require a declaration concerning distribution and settlement compliance in advance of that hearing.

Plaintiffs' counsel shall give notice of this ruling. No renewed class mailing appears necessary solely because of the continuance because the Preliminary Approval Order reserves the Court's right to continue the hearing without further notice to Class Members; the Settlement Administrator should update the settlement website with the continued hearing date. (Prelim. Approval Order, ¶ 19.)